

Federal Constitution

NOTES

Art. 17

1. The words “Federal Government” substituted for the words “registration authority” and the words “the Federal Government” for the words “that authority” by Act 10/1960, paragraphs 2(a) and (b), in force from 01-12-1960.

2. This Article was repealed by Act 14/1962, section 5, in force from 01-07-1963, the repeal to be without prejudice to the operation of the Article as respects any application for registration thereunder made before the coming into operation of the said section 5. This Article read as follows:

“17. Subject to Article 18, any person of or over the age of eighteen years who was resident in the Federation on Merdeka Day is eligible, subject to the provisions of the Second Schedule, to be registered as a citizen upon making application to the Federal Government if he satisfies the Federal Government—

- (a) that he has resided in the Federation, during the twelve years immediately preceding the date of the application, for periods amounting in the aggregate to not less than eight years;
- (b) that he intends to reside permanently therein;
- (c) that he is of good character; and
- (d) except where the application is made within one year after Merdeka Day and the applicant has attained the age of forty-five years at the date of the application, that he has an elementary knowledge of the Malay language.”.

3. There are references to this repealed Article in Art. 25(1), (1A), (2), 28(1)(a), 28A(4), 43(7) and in Eighth Schedule subsections 2(3) and 20(3), hence reference to Article 17 is retained in the Federal Constitution.

Art. 18

1. The words “this Constitution” which appear in Clause (1), at the end of Clause (2) and in Clause (3) were introduced by Act 26/1963, subsection 29(2), in force from 16-09-1963, and replaced references to Articles 15 and 16. The Act also inserted the words “or the Constitution of the State of Singapore” after the words “deprived of citizenship under this Constitution” in Clause (2) but they were deleted by Act 59/1966, section 2, in force from 09-08-1965.

Clause (4)

This Clause which read as follows was repealed by Act 25/1963, section 8, in force from 29-08-1963:

“(4) For the purpose of any application for registration under any of the said Articles, a person shall be deemed to be of good character unless, within the period of three years immediately preceding the date of the application—

- (a) he has been convicted by a competent court in any country of a criminal offence for which he was sentenced to death; or
- (b) he has been detained under a sentence of imprisonment of twelve months or more imposed on him on his conviction of a criminal offence (whether during or before the said period) by such a court,

and in either case has not received a free pardon in respect of the offence.”.

2. See Art. 15(1), (2), (3), 15A, 16 & 16A.

Art. 19

1. The present Article was inserted by Act 26/1963, section 27, in force from 16-09-1963. Act 59/1966, section 2, in force from 09-08-1965, made the following amendments to it:

Clause (1)

- a. the words “Subject to Clause (9)” substituted for the words “Subject to Clauses (7) and (9)”;

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Art. 19—(cont.)

- b. the words “outside Singapore” which appeared in subparagraph (a)(i) after the word “Federation” were deleted;
- c. subparagraph (a)(ii) which read as follows was repealed:
 - “(ii) he has resided in Singapore for the required periods and intends, if the certificate is granted, to do so permanently;”,

Clause (4)

- a. The words “outside Singapore” which appeared after the word “Federation” in line four were deleted and the words “in Singapore before Malaysia Day or with the approval of the Federal Government residence in Singapore after Malaysia Day” substituted for the words “before Malaysia Day in Singapore”.
 - b. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
2. Clauses (6), (7) and (8) which read as follows were repealed:
- “(6) A person to whom a certificate of naturalization is granted shall be a Singapore citizen if but only if the certificate is granted by virtue of paragraph (a)(ii) of Clause (1).
- (7) A certificate of naturalization as a Singapore citizen shall not be granted without the concurrence of the government of Singapore.
- (8) Any application for naturalization as a citizen of Singapore which has been made but not disposed of before Malaysia Day shall as from that day be treated as if it had been an application duly made for naturalization under this Article, and as if anything done in connection therewith before that day under or for the purposes of the law of Singapore had been duly done under or for the purposes of this Article.”.
3. The earlier Article read as follows:
- “19. Subject to Article 21, the Federal Government may, upon application made by any person of or over the age of twenty-one years, grant a certificate of naturalization to that person if satisfied—
- (a) that he has resided in the Federation, during the twelve years preceding the date of the application, for periods amounting in the aggregate to not less than ten years;
 - (b) that he intends, if the certificate is granted, to reside permanently therein;
 - (c) that he is of good character;
 - (d) that he has an adequate knowledge of the Malay language; and
 - (e) that he has resided continuously in the Federation for a period of not less than one year immediately preceding the date of the application.”.

4. The word “and” at the end of paragraph (d) was inserted by Act 14/1962, section 6, in force from 01-10-1962.

5. Paragraph (e) was inserted by Act 14/1962, section 6, in force from 01-10-1962.

Art. 19A

1. This Article was inserted by Act 26/1963, section 28, in force from 16-09-1963, and was repealed by Act 59/1966, section 2, in force from 09-08-1965. It read as follows:
- “19A. (1) The Federal Government may, upon application made by any Singapore citizen of or over the age of twenty-one years, enrol him as a citizen who is not a Singapore citizen, if the Federal Government is satisfied that, had his application been for the grant under Article 19 of a certificate of naturalization as a citizen who is not a Singapore citizen, the conditions of paragraphs (a)(i), (b) and (c) of Clause (1) of that Article for the grant of the certificate would be fulfilled.
- (2) In relation to Singapore citizens Articles 15 and 15A shall apply to entitle or allow them to be enrolled as citizens who are not Singapore citizens, in the same way as

(2) Subject to Clause (9), the Federal Government may, in such special circumstances as it thinks fit, upon application made by any person of or over the age of twenty-one years who is not a citizen, grant a certificate of naturalization to that person if satisfied—

- (a) that he has resided in the Federation for the required periods and intends, if the certificate is granted, to do so permanently;
- (b) that he is of good character; and
- (c) that he has an adequate knowledge of the Malay language.

(3) The periods of residence in the Federation or the relevant part of it which are required for the grant of a certificate of naturalization are periods which amount in the aggregate to not less than ten years in the twelve years immediately preceding the date of the application for the certificate, and which include the twelve months immediately preceding that date.

(4) For the purposes of Clauses (1) and (2) residence before Malaysia Day in the territories comprised in the States of Sabah and Sarawak shall be treated as residence in the Federation; and for the purposes of Clause (2) residence in Singapore before Malaysia Day or with the approval of the Federal Government residence in Singapore after Malaysia Day shall be treated as residence in the Federation.

(5) A person to whom a certificate of naturalization is granted shall be a citizen by naturalization from the date on which the certificate is granted.

(6) *(Repealed)*.

(7) *(Repealed)*.

(8) *(Repealed)*.

(9) No certificate of naturalization shall be granted to any person until he has taken the oath set out in the First Schedule.

19A. *(Repealed)*.

20. *(Repealed)*.

21. *(Repealed)*.

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Art. 19A—(cont.)

those Articles apply, in relation to persons who are not citizens, to entitle or allow them to be registered as citizens, except that references to Article 18 shall not apply, nor shall Clause (6) of Article 15.

(3) A citizen enrolled as being or not being a Singapore citizen by virtue of this Article or by virtue of any corresponding provision in the Constitution of the State of Singapore shall be or not be a Singapore citizen accordingly from the day on which he is so enrolled.

(4) Where a person has been enrolled under this Article as a citizen who is not a Singapore citizen, and the Federal Government is satisfied that the enrolment—

(a) was obtained by means of fraud, false representation or the concealment of any material fact; or

(b) was effected by mistake;

the Federal Government may cancel the enrolment:

Provided that Article 27 shall apply in relation to the cancellation as it applies in relation to an order under Article 24, 25 or 26 depriving a person of citizenship.

(5) Where a person's enrolment as a citizen who is not a Singapore citizen is cancelled under paragraph (a) of Clause (4), and in consequence of that enrolment a child of that person had also been enrolled as such a citizen pursuant to Clause (2) of Article 15 as applied by this Article, the Federal Government may also cancel the child's enrolment unless the child has attained the age of twenty-one.

(6) Where under this Article or under any provision of the Constitution of the State of Singapore a person's enrolment as a citizen of either description is cancelled, that shall not discharge him from liability in respect of anything done or omitted before the cancellation, but except as regards anything so done or omitted he shall revert to his former status as a citizen.”.

2. There is a reference to this repealed Article in Second Schedule, Part III, subsection 4(3), hence reference to Article 19A is retained in the Federal Constitution.

Art. 20

1. This Article was repealed by Act 14/1962, section 7, in force from 01-02-1964, and read as follows:

“20. (1) Subject to Article 21, the Federal Government shall, upon application made by any person in accordance with Clause (2), grant a certificate of naturalization to that person if satisfied—

(a) that he has served satisfactorily for a period of not less than three years in full-time service, or for a period of not less than four years in part-time service, in such of the armed forces of the Federation as may be prescribed by the Federal Government for the purposes of this Article; and

(b) that he intends, if the certificate is granted, to reside permanently in the States of Malaya.

(2) An application under this Article may be made either while the applicant is serving in such service as aforesaid or within the period of five years, or such longer period as the Federal Government may in any particular case, allow, after his discharge.

(3) References in this Article to service in the armed forces of the Federation include references to service before Merdeka Day; and in calculating for the purposes of this Article the period of full-time service in such forces of a person who has served both in full-time and in part-time service therein, any two months of part-time service shall be treated as one month of full-time service.”.

2. The words “States of Malaya” which appear at the end of Clause (1)(b) were inserted by Act 26/1963, subsection 29(3), in force from 16-09-1963, in substitution for the word “Federation”.

3. For list of forces prescribed under Article 20(1)(a)—See L.N. 261/1958.

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Art. 21

This Article was repealed by Act 26/1963, section 70, in force from 16-09-1963, but continues to have effect for the purposes of repealed Article 20. It read as follows:

“21. (1) A certificate of naturalization shall not be granted to any person until he has taken the oath set out in the First Schedule.

(2) A person to whom a certificate of naturalization is granted shall be a citizen by naturalization from the date on which the certificate is so granted.”.

Citizenship by incorporation of territory

22. If any new territory is admitted to the Federation after Malaysia Day in pursuance of Article 2, Parliament may by law determine what persons are to be citizens by reason of their connection with that territory and the date or dates from which such persons are to be citizens.

*Chapter 2—Termination of Citizenship***Renunciation of citizenship**

23. (1) Any citizen of or over the age of twenty-one years and of sound mind who is also or is about to become a citizen of another country may renounce his citizenship of the Federation by declaration registered by the Federal Government, and shall thereupon cease to be a citizen.

(2) A declaration made under this Article during any war in which the Federation is engaged shall not be registered except with the approval of the Federal Government.

(3) This Article applies to a woman under the age of twenty-one years who has been married as it applies to a person of or over that age.

Deprivation of citizenship on acquisition or exercise of foreign citizenship, etc.

24. (1) If the Federal Government is satisfied that any citizen has acquired by registration, naturalization or other voluntary and formal act (other than marriage) the citizenship of any country outside the Federation, the Federal Government may by order deprive that person of his citizenship.

(2) If the Federal Government is satisfied that any citizen has voluntarily claimed and exercised in any country outside the Federation any rights available to him under the law of that country, being rights accorded exclusively to its citizens, the Federal Government may by order deprive that person of his citizenship.

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Art. 22

The words “after Malaysia Day” were inserted by Act 26/1963, section 34, in force from 16-09-1963.

Art. 23

Clause (1)

- a. The words “Federal Government” substituted for the words “registration authority” by Act 10/1960, paragraph 2(a), in force from 01-12-1960.
- b. The words “or is about to become” were inserted by Act 14/1962, section 8, in force from 31-08-1957.

Clause (2)

Act 10/1960, paragraph 2(c), in force from 01-12-1960, deleted the words “, but except as aforesaid the registration authority shall register any declaration duly made thereunder” which appeared at the end of the Clause.

Art. 24

Act 26/1963, subsection 33(1), in force from 16-09-1963, omitted the words “at any time after Merdeka Day” which appeared after the words “any citizen has” in Clauses (1) and (2).

Clause (1): See Art. 26A & 28(3).

Clause (2)

- a. The words “any country outside the Federation” substituted for the words “a foreign country” by Act A354, paragraph 7(a), in force from 27-08-1976.
- b. *See Art. 27(1), 28(3) & 28A(2).*

Clause (3)

The words “part of the Commonwealth” substituted for the words “Commonwealth country” and the words “that part of the Commonwealth” substituted for the words “that country” by Act 14/1962, subsection 9(2), in force from 01-10-1962. This Clause was repealed by Act A354, paragraph 7(b), in force from 27-08-1976, and read as follows:

“(3) Where provision is in force under the law of any part of the Commonwealth for conferring on citizens of that part of the Commonwealth rights not available to other Commonwealth citizens, Clause (2) shall apply, in relation to those rights, as if that part of the Commonwealth were a foreign country.”.

Clause (3A)

Inserted by Act 14/1962, subsection 9(3), in force from 01-10-1962, and amended by Act A354, paragraph 7(c), in force from 27-08-1976, by deleting the words “and that Clause as applied by Clause (3),” which appear after the words “generality of Clause (2)”, and deleting the words “and that Clause as applied as aforesaid”, which appear after the words “purposes of Clause (2)”.

Clause (4): See Art. 28A(3).

(3) (*Repealed*).

(3A) Without prejudice to the generality of Clause (2), the exercise of a vote in any political election in a place outside the Federation shall be deemed to be the voluntary claim and exercise of a right available under the law of that place; and for the purposes of Clause (2), a person who, after such date as the Yang di-Pertuan Agong may by order appoint* for the purposes of this Clause—

- (a) applies to the authorities of a place outside the Federation for the issue or renewal of a passport; or
- (b) uses a passport issued by such authorities as a travel document,

shall be deemed voluntarily to claim and exercise a right available under the law of that place, being a right accorded exclusively to the citizens of that place.

(4) If the Federal Government is satisfied that any woman who is a citizen by registration under Clause (1) of Article 15 has acquired the citizenship of any country outside the Federation by virtue of her marriage to a person who is not a citizen, the Federal Government may by order deprive her of her citizenship.

Deprivation of citizenship by registration under Article 16A or 17 or by naturalization

25. (1) The Federal Government may by order deprive of his citizenship any person who is a citizen by registration under Article 16A or 17** or a citizen by naturalization if satisfied—

- (a) that he has shown himself by act or speech to be disloyal or disaffected towards the Federation;
- (b) that he has, during any war in which the Federation is or was engaged, unlawfully traded or communicated with an enemy or been engaged in or associated with any business which to his knowledge was carried on in such manner as to assist an enemy in that war; or
- (c) that he has, within the period of five years beginning with the date of the registration or the grant of the certificate, been sentenced in any country to imprisonment for a

*10 October 1963—see L.N. 268/1963.

**NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.

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Art. 25

See Art. 26B(2), 27(1), 28(2), 28A(2), (4), (5) & (6).

Clause (1)

- a. Act 14/1962, section 32, in force from 01-10-1962, omitted the words “Subject to Clause (3)”, which appeared at the commencement.
- b. Act 26/1963, paragraph 33(2)(a), in force from 16-09-1963, substituted the words “Article 16A or 17” for “Article 17”.

Clause (1)(c)

The word “ringgit” substituted for the word “dollars” by Malaysian Currency (Ringgit) Act 1975 [Act 160], section 2, in force from 29-08-1975.

term of not less than twelve months or to a fine of not less than five thousand ringgit or the equivalent in the currency of that country, and has not received a free pardon in respect of the offence for which he was so sentenced.

(1A) The Federal Government may by order deprive of his citizenship any person who is a citizen by registration under Article 16A or 17* or a citizen by naturalization if satisfied that without the Federal Government's approval, he has accepted, served in, or performed the duties of any office, post or employment under the Government of any country outside the Federation or any political subdivision thereof, or under any agency of such a Government, in any case where an oath, affirmation or declaration of allegiance is required in respect of the office, post or employment:

Provided that a person shall not be deprived of citizenship under this Clause by reason of anything done before the beginning of October 1962, in relation to a foreign country, and before the beginning of January 1977, in relation to a Commonwealth country, notwithstanding that he was at the time a citizen.

(2) The Federal Government may by order deprive of his citizenship any person who is a citizen by registration under Article 16A or 17* or a citizen by naturalization if satisfied that he has been ordinarily resident in countries outside the Federation for a continuous period of five years and during that period has neither—

- (a) been at any time in the service of the Federation or of an international organization of which the Federal Government was a member; nor
- (b) registered annually at a consulate of the Federation his intention to retain his citizenship:

Provided that this Clause shall not apply to any period of residence in any Commonwealth country before the beginning of January 1977.

(3) (*Repealed*).

*NOTE—This Article has been repealed by section 5 of the Constitution (Amendment) Act 1962 [Act 14/1962] w.e.f. 1 July 1963—see L.N. 105/1963. See also notes on Article 17.